A LIVING WILL TO DIE WELL

Pointless treatment? Here's a legal way that lets patients refuse it in advance

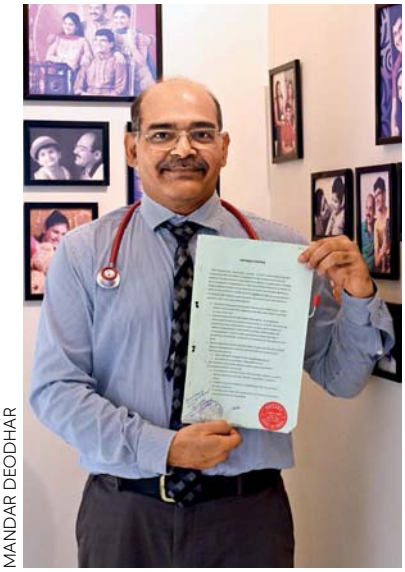
By **Dhaval S. Kulkarni**

IT'S A SITUATION FAMILIES DREAD: A LOVED ONE on life support with scant hope for revival. In the mind's theatre, it's a war of conflicting emotions—including guilt for thinking of the mounting hospital bill. The one person who would have rushed to help—with judgement or money—is the one suffering mutely on the death bed. Now, Maharashtra has become the first Indian state to offer a way out, allowing the online registration, verification and storage of 'living wills'. These documents can be registered on the MahaULB portal, an integrated citizen service utility launched by the state government.

In a 2018 judgment, the Supreme Court had said individuals facing a terminal condition have the right to refuse treatment—to determine the nature and extent of medical care they wish to receive. It permitted citizens to draft an advance 'living will', to be executed in situations where life can only be artificially prolonged but they are unable to communicate, family members are too stricken to take a call, and hospitals could monetise the impasse. This covers the usual array: ventilator support, tube feeding, dialysis, surgery et al.

Dr Nikhil Datar, a Mumbai-based gynaecologist, who was among the first to register his living will, plumps for digitisation of wills so that they could be easily retrieved when needed. In 2023, the lack of administrative infrastructure to act upon the 2018 Supreme Court verdict prompted him to file a Public Interest Litigation in the Bombay High Court. That led to 417 custodians being appointed to handle and execute living wills in Maharashtra, he said.

Citing a case from March 2026, where the Supreme Court allowed the withdrawal of life support for Harish Rana (32), who had been in a permanent vegetative state for 13 years, Dr Datar underlined the need for living wills. "There are many aged people who suffer (like this)...their relatives say cure them or free them, but we are unable to do anything either way," he explains. Everyone suffers in the process—patients, relatives, even doctors who could later be charged with trying to make money.



MANDAR DEODHAR

ADVANCE ACTION Dr Nikhil Datar, who registered his living will

Takeaways

- **A 'living will' lets people refuse costly terminal stage treatment well in advance**
- **In line with 2018 SC nod, they can specify the kind of medicare they want—or not**

Mumbai-based Yashwant Kajrolkar, whose elder brother Govind was a proponent of living wills but passed away in May, says he spoke about the need for living wills at his condolence meeting. Kajrolkar, who registered his own living will in 2023—he claims to be the second to do so after Dr Datar—adds that his efforts had led to a few drafting their living wills.

"Hospital expenses are high and there are situations when patients are on life support sans any chances of recovery, with family running out of money," says Uday Karnik, 80, a resident of Mahim who has made a will, as has his wife Anjana, 76. Karnik has laid down clauses specifying that he should not be put on a ventilator, or be given dialysis or chemotherapy.

A WILL DO SPIRIT

Jatin Popat, founder and CEO of Will-Jini Succession Services, says living wills are necessary for people at the risk of hospitalisation and high costs of medical treatment. "Hospital bills may soar when a patient is put on life support, and the family is unable to take a decision on emotional grounds for stopping treatment," he added. Retirees and professionals are also opting for living wills as they do not want to spend their savings on medical treatments beyond the point of revival, and want their families to be able to access this money.

Advocate Vivek Sadhale, co-founder of law firm LegaLogic Consulting, says living wills must have clear, specific instructions regarding medical treatment preferences. It must appoint an agent who will be responsible for overseeing that the wishes are duly honoured and carried out. It must be signed by the will-maker in presence of two witnesses, and may be submitted for registration either through the online portal or by visiting the local municipal office. After its submission, physical verification before the designated custodian appointed by the state government is mandatory. Tiresome, perhaps, but worth doing for the right to die with dignity. ■